



Acquisition of Land Act 1981

1981 CHAPTER 67

An Act to consolidate the Acquisition of Land (Authorisation Procedure) Act 1946 and related enactments.
[30th October 1981]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

GENERAL

1.—(1) In this Act “compulsory purchase” means a compulsory purchase of land, being— Application of Act.

- (a) a compulsory purchase to which this Act applies by virtue of any other enactment, whether or not passed or made before this Act, or
- (b) a compulsory purchase under an enactment specified in subsection (2) below.

- (2)** The enactments referred to in subsection (1)(b) above are—
- | | |
|---|-------------|
| section 2 of the Metropolitan Police Act 1886, | 1886 c. 22. |
| section 1(3) of the Military Lands Act 1892, | 1892 c. 43. |
| sections 25(1) and 39(1) of the Small Holdings and Allotments Act 1908, | 1908 c. 36. |

PART I 1909 c. 47.	section 5(1) of the Development and Road Improvement Funds Act 1909 as it applies to acquisition by local authorities (as defined in section 7(1) of this Act) or the Secretary of State,
1926 c. 52.	section 4 of the Small Holdings and Allotments Act 1926,
1936 c. 49.	section 306 of the Public Health Act 1936,
1944 c. 31.	section 90(1) of the Education Act 1944,
1945 c. 42.	section 24(4) of the Water Act 1945 as it applies to local authorities (as defined in section 7(1) of this Act).

(3) In this section "enactment" includes any statutory instrument.

Compulsory purchase

Procedure for authorisation. 2.—(1) The authorisation of a compulsory purchase shall be conferred by an order (in this Act called a "compulsory purchase order").

(2) A compulsory purchase order authorising a compulsory purchase by an authority other than a Minister shall be made by that authority and submitted to and confirmed by the confirming authority in accordance with Part II of this Act.

(3) A compulsory purchase order authorising a compulsory purchase by a Minister shall be made by the Minister in accordance with Schedule 1 to this Act.

Minerals. 3. Schedule 2 to this Act (exception of minerals from purchases etc.) shall have effect.

Assessment of compensation. 4.—(1) In relation to a compulsory purchase the Land Compensation Act 1961 shall have effect subject to the provisions of this section.
1961 c. 33.

(2) The Lands Tribunal shall not take into account any interest in land, or any enhancement of the value of any interest in land, by reason of any building erected, work done or improvement or alteration made, whether on the land purchased or on any other land with which the claimant is, or was at the time of the erection, doing or making of the building, works, improvement or alteration, directly or indirectly concerned, if the Lands Tribunal is satisfied that the creation of the interest, the erection of the building, the doing of the work, the making of the improvement or the alteration, as the case may be, was not reasonably necessary and was undertaken with a view to obtaining compensation or increased compensation.

Supplemental

PART I

5.—(1) For the purposes of the execution of his powers and duties under this Act, a Minister may cause to be held such public local inquiries as are directed by this Act and such other public local inquiries as he may think fit. Local inquiries.

(2) Subsections (2) and (3) of section 250 of the Local Government Act 1972 (giving of evidence on inquiries) shall apply to a public local inquiry held in pursuance of this Act. 1972 c. 70.

(3) In relation to—

- (a) a proposed acquisition of land by an authority other than a Minister, or
- (b) the proposed extinction under Part VI of this Act of a right of way over land acquired or proposed to be acquired by an authority other than a Minister,

subsections (4) and (5) of the said section 250 (defraying of costs of inquiries) shall apply to a public local inquiry held in pursuance of this Act.

6.—(1) Any notice or other document required or authorised to be served under this Act may be served on any person either by delivering it to him, or by leaving it at his proper address, or by post, so however that the document shall not be duly served by post unless it is sent by registered letter, or by the recorded delivery service. Service of documents.

(2) Any such document required or authorised to be served upon an incorporated company or body shall be duly served if it is served upon the secretary or clerk of the company or body.

(3) For the purposes of this section and of section 7 of the Interpretation Act 1978 the proper address of any person upon whom any such document as aforesaid is to be served shall, in the case of the secretary or clerk of any incorporated company or body, be that of the registered or principal office of the company or body, and in any other case be the last known address of the person to be served: 1978 c. 30.

Provided that where the person to be served has furnished an address for service, his proper address for the purposes aforesaid shall be the address furnished.

(4) If the authority or Minister having jurisdiction to make the order in connection with which the document is to be served is satisfied that reasonable inquiry has been made and that it is not practicable to ascertain the name or address of an owner, lessee or occupier of land on whom any such document as aforesaid is to be served, the document may be served by

PART I addressing it to him by the description of "owner", "lessee" or "occupier" of the land (describing it) to which it relates, and by delivering it to some person on the premises or, if there is no person on the premises to whom it may be delivered, by affixing it or a copy of it to some conspicuous part of the premises:

Provided that this subsection shall not have effect in relation to an owner, lessee or occupier being a local authority or statutory undertakers or the National Trust.

Interpretation

Interpretation. 7.—(1) In this Act, except where the context otherwise requires—

"acquiring authority", in relation to a compulsory purchase, means the Minister, local authority or other person who may be authorised to purchase the land compulsorily,

"compulsory purchase order" means an order under section 2(1) above,

"confirming authority", in relation to a compulsory purchase, means, where the acquiring authority is not a Minister, the Minister having power to authorise the acquiring authority to purchase the land compulsorily,

"land"—

(a) includes messuages, tenements and hereditaments, and

(b) in relation to compulsory purchase under any enactment, includes anything falling within any definition of the expression in that enactment,

"local authority" means the council of a county, borough or district, the common council of the City of London, the receiver for the metropolitan police district or any other authority being a local authority within the meaning of the Local Loans Act 1875 and includes—

1875 c. 83.

(a) any water authority or drainage board,

(b) any joint board or joint committee if all the constituent authorities are such local authorities as aforesaid, and

(c) the Honourable Society of the Inner Temple and the Honourable Society of the Middle Temple,

"National Trust" means the National Trust for Places of Historic Interest or Natural Beauty incorporated by the National Trust Act 1907,

"owner" in relation to any land, means a person, other than a mortgagee not in possession, who is for the time being entitled to dispose of the fee simple of the

land, whether in possession or in reversion, and includes also a person holding or entitled to the rents and profits of the land under a lease or agreement, the unexpired term whereof exceeds three years,

PART I

“prescribed”: see subsection (2) below.

(2) Anything which, by Part II or III of this Act, or Schedule 1 or 3 of this Act, is required or authorised to be prescribed shall be prescribed by regulations made by the Secretary of State by statutory instrument.

8.—(1) In this Act, unless the context otherwise requires, **“statutory undertakers”** means— Statutory undertakers.

(a) any person authorised by any enactment to construct, work or carry on—

(i) any railway, light railway, tramway, road transport, water transport, canal or inland navigation undertaking, or

(ii) any dock, harbour, pier or lighthouse undertaking, or

(iii) any undertaking for the supply of electricity, gas, hydraulic power or water, or

(b) the British Airports Authority or the Civil Aviation Authority, or

(c) the Post Office or British Telecommunications,

and in this subsection “enactment” means any Act or any order or scheme made under or confirmed by an Act.

(2) In this Act “undertaking”, in relation to the British Airports Authority, means the aerodromes owned by the Authority.

(3) In this Act “the appropriate Minister” means, in relation to any statutory undertakers, the Secretary of State.

(4) If any question arises under this Act which Minister is the appropriate Minister, the question shall be determined by the Treasury.

9. For the removal of doubt it is hereby declared that any Land held inalienably.
power conferred—

(a) under this Act, or

(b) by or under the Acquisition of Land (Authorisation Procedure) Act 1946, or any enactment passed before the commencement of that Act,

to purchase land compulsorily is, except in so far as any express provision of any such enactment restricts the exercise of the power, exercisable notwithstanding any other enactment providing that the land shall be inalienable.

PART II

PURCHASES BY LOCAL AND OTHER AUTHORITIES

Preliminary.

10.—(1) This Part of this Act has effect except where a Minister is the acquiring authority.

(2) The compulsory purchase order shall be in the prescribed form and shall describe by reference to a map the land to which it applies.

(3) Before submitting the order to the confirming authority the acquiring authority shall comply with sections 11 and 12 below.

*Notices prior to submission of order to
confirming authority*

Notices in
newspapers.

11.—(1) The acquiring authority shall in two successive weeks publish a notice in the prescribed form in one or more local newspapers circulating in the locality in which the land comprised in the order is situated.

(2) The notice shall—

- (a) state that the order has been made and is about to be submitted for confirmation,
- (b) describe the land and state the purpose for which the land is required,
- (c) name a place within the locality where a copy of the order and of the map referred to therein may be inspected, and
- (d) specify the time (not being less than twenty-one days from the first publication of the notice) within which, and the manner in which, objections to the order can be made.

Notices to
owners,
lessees and
occupiers.

12.—(1) The acquiring authority shall serve on every owner, lessee and occupier (except tenants for a month or any period less than a month) of any land comprised in the order a notice in the prescribed form—

- (a) stating the effect of the order,
- (b) stating that it is about to be submitted for confirmation, and

- (c) specifying the time (not being less than twenty-one days from service of the notice) within which, and the manner in which, objections to the order can be made. PART II

(2) For the purposes of this section an occupier being a statutory tenant within the meaning of the Rent Act 1977 or the 1977 c. 42. Rent (Agriculture) Act 1976 shall be deemed to be a tenant for 1976 c. 80. a period less than a month.

(3) Where under this section any notice is required to be served on an owner of land, and the land is ecclesiastical property, a like notice shall be served on the Church Commissioners.

In this subsection "ecclesiastical property" means land belonging to any ecclesiastical benefice, or being or forming part of a church subject to the jurisdiction of the bishop of any diocese or the site of such a church, or being or forming part of a burial ground subject to such jurisdiction.

Confirmation of order

13.—(1) If no objection is duly made by any such owner, Confirmation
lessee or occupier as is mentioned in section 12 above, or if all of order.
objections so made are withdrawn, the confirming authority, upon being satisfied that the proper notices have been published and served, may, if the confirming authority thinks fit, confirm the order with or without modifications.

(2) If any objection duly made as aforesaid is not withdrawn, the confirming authority shall, before confirming the order, either cause a public local inquiry to be held or afford to any person by whom any objection has been duly made as aforesaid and not withdrawn an opportunity of appearing before and being heard by a person appointed by the confirming authority for the purpose, and, after considering the objection and the report of the person who held the inquiry or the person appointed as aforesaid, may confirm the order either with or without modifications.

(3) If any person by whom an objection has been made avails himself of the opportunity of being heard, the confirming authority shall afford to the acquiring authority, and to any other persons to whom it appears to the confirming authority expedient to afford it, an opportunity of being heard on the same occasion.

(4) Notwithstanding anything in subsection (2) or (3) above, the confirming authority may require any person who has made an objection to state in writing the grounds thereof, and may disregard the objection for the purposes of this section if the con-

PART II firming authority is satisfied that the objection relates exclusively to matters which can be dealt with by the tribunal by whom the compensation is to be assessed.

(5) This section has effect subject to section 31 below (joint confirmation by confirming authority and appropriate Minister)

Land not originally included in order.

14. The order as confirmed by the confirming authority shall not, unless all persons interested consent, authorise the acquiring authority to purchase compulsorily any land which the order would not have authorised that authority to purchase compulsorily if it had been confirmed without modification.

Notices after confirmation of order.

15. As soon as may be after the order has been confirmed the acquiring authority shall publish in one or more local newspapers circulating in the locality in which the land comprised in the order is situated a notice in the prescribed form—

- (a) describing the land,
- (b) stating that the order has been confirmed, and
- (c) naming a place where a copy of the order as confirmed and of the map referred to therein may be inspected at all reasonable hours.

and shall serve a like notice, and a copy of the order as confirmed, on any person on whom notices with respect to the land were required to be served under section 12 above.

PART III

SPECIAL KINDS OF LAND

Statutory undertakers' land excluded from compulsory purchase.

16.—(1) This section applies where the land comprised in a compulsory purchase order includes land which has been acquired by statutory undertakers for the purposes of their undertaking and on a representation made to the appropriate Minister before the expiration of the time within which objections to the order can be made he is satisfied that—

- (a) any of the said land is used for the purposes of the carrying on of their undertaking, or
- (b) an interest in any of the said land is held for those purposes.

(2) The compulsory purchase order shall not be confirmed or made so as to authorise the compulsory purchase of any land as to which the appropriate Minister is satisfied as aforesaid

except land as to which he is satisfied that its nature and situation are such—

PART III

- (a) that it can be purchased and not replaced without serious detriment to the carrying on of the undertaking, or
- (b) that if purchased it can be replaced by other land belonging to, or available for acquisition by, the undertakers without serious detriment to the carrying on thereof,

and certifies accordingly.

Orders subject to special parliamentary procedure

17.—(1) This section applies to land which—

- (a) is the property of a local authority, or
- (b) has been acquired by statutory undertakers, who are not a local authority, for the purposes of their undertaking.

Local authority and statutory undertakers' land.

(2) Subject to subsection (3) below, a compulsory purchase order shall, in so far as it authorises the compulsory purchase of land to which this section applies, be subject to special parliamentary procedure in any case where an objection to the order has been made by the local authority, or as the case may be the statutory undertakers, and has not been withdrawn.

(3) Subsection (2) above shall not apply to the compulsory acquisition of an interest in land where the person acquiring the interest is a local authority (as defined in subsection (4) below), the Land Authority for Wales, the Peak Park Joint or Lake District Special Planning Board, any statutory undertakers or a Minister.

(4) In subsection (3) above—

“local authority” means—

(a) in relation to England, the council of a county or district, the council of a London borough, the Common Council of the City of London and the Greater London Council.

(b) in relation to Wales, the council of a county or district,

and this definition applies to the Isles of Scilly as if the Council of those Isles were the council of a county ;

“statutory undertakers” includes—

(a) the National Coal Board, and

(b) any other authority, body or undertakers specified in an order made by the Secretary of State under this paragraph,

PART III

(5) An order under paragraph (b) of the definition of “statutory undertakers” in subsection (4) above shall be made by statutory instrument and shall be subject to annulment in pursuance of a resolution of either House of Parliament.

National
Trust land.

18.—(1) This section applies to land belonging to the National Trust which is held by the Trust inalienably.

(2) A compulsory purchase order shall, in so far as it authorises the compulsory purchase of land to which this section applies, be subject to special parliamentary procedure in any case where an objection to the order has been duly made by the National Trust and has not been withdrawn.

1907 c. cxxxvi.
1939 c. lxxxvi.

(3) In this section “held inalienably”, in relation to land belonging to the National Trust, means that the land is inalienable under section 21 of the National Trust Act 1907 or section 8 of the National Trust Act 1939.

Commons,
open spaces
etc.

19.—(1) In so far as a compulsory purchase order authorises the purchase of any land forming part of a common, open space or fuel or field garden allotment, the order shall be subject to special parliamentary procedure unless the Secretary of State is satisfied—

(a) that there has been or will be given in exchange for such land, other land, not being less in area and being equally advantageous to the persons, if any, entitled to rights of common or other rights, and to the public, and that the land given in exchange has been or will be vested in the persons in whom the land purchased was vested, and subject to the like rights, trusts and incidents as attach to the land purchased, or

(b) that the land does not exceed 250 square yards in extent or is required for the widening or drainage of an existing highway or partly for the widening and partly for the drainage of such a highway and that the giving in exchange of other land is unnecessary, whether in the interests of the persons, if any, entitled to rights of common or other rights or in the interests of the public,

and certifies accordingly.

(2) Where it is proposed to give a certificate under this section, the Secretary of State shall give public notice of his intention so to do, and—

(a) after affording opportunity to all persons interested to make representations and objections in relation thereto, and

PART III

- (b) after causing a public local inquiry to be held in any case where it appears to him to be expedient so to do, having regard to any representations or objections made,

the Secretary of State may, after considering any representations and objections made and, if an inquiry has been held, the report of the person who held the inquiry, give the certificate.

- (3) A compulsory purchase order may provide for—

- (a) vesting land given in exchange as mentioned in subsection (1) above in the persons, and subject to the rights, trusts and incidents, therein mentioned, and
(b) discharging the land purchased from all rights, trusts and incidents to which it was previously subject.

- (4) In this section—

“common” includes any land subject to be enclosed under the Inclosure Acts 1845 to 1882, and any town or village green,

“fuel or field garden allotment” means any allotment set out as a fuel allotment, or a field garden allotment, under an Inclosure Act,

“open space” means any land laid out as a public garden, or used for the purposes of public recreation, or land being a disused burial ground.

20.—(1) This section applies, subject to subsection (2) below, to land being, or being the site of— Ancient monuments.

- (a) a monument with respect to which an interim preservation notice is in force, or
(b) subject to subsection (4) below, any other ancient monument as defined in the Ancient Monuments Acts 1913 and 1931.

(2) Subsection (1) above shall not include a listed building, or any land or object comprised within the curtilage of a listed building, unless the building or object—

- (a) is specified in the Schedule to the Ancient Monuments Protection Act 1882, or 1882 c. 73.
(b) is for the time being specified in a list published under section 12 of the Ancient Monuments Consolidation and Amendment Act 1913. 1913 c. 32.

(3) In so far as a compulsory purchase order authorises the purchase of land to which this section applies, the order shall be subject to special parliamentary procedure unless the Secretary of State is the acquiring authority or certifies that the acquiring authority has entered into an undertaking with the Secretary

PART III of State to observe such conditions as to the use of the land as in his opinion are requisite having regard to the nature thereof.

1979 c. 46. (4) Subsection (1)(b) above is prospectively repealed by the Ancient Monuments and Archaeological Areas Act 1979 as amended by paragraph 29 of Schedule 4 to this Act, that is to say repealed by a provision which may be brought into force under section 65(2) of that Act.

(5) In this section—

1953 c. 49. “interim preservation notice” means a notice served under section 10(1) of the Historic Buildings and Ancient Monuments Act 1953,

1971 c. 78. “listed building” has the meaning given by section 54 of the Town and Country Planning Act 1971.

Land within more than one provision in Part III. **21.** In the case of land falling within more than one of sections 17 to 20 above a compulsory purchase order shall be subject to special parliamentary procedure if required to be subject thereto by any of those sections.

Supplemental

Notice of giving of certificate. **22.** As soon as may be after the giving of a certificate under this Part of this Act, the acquiring authority shall publish in one or more local newspapers circulating in the locality in which the land comprised in the order is situated a notice in the prescribed form stating that the certificate has been given.

PART IV

VALIDITY AND DATE OF OPERATION OF ORDERS AND CERTIFICATES

Grounds for application to High Court. **23.—(1)** If any person aggrieved by a compulsory purchase order desires to question the validity thereof, or of any provision contained therein, on the ground that the authorisation of a compulsory purchase thereby granted is not empowered to be granted under this Act or any such enactment as is mentioned in section 1(1) of this Act, he may make an application to the High Court.

(2) If any person aggrieved by—

(a) a compulsory purchase order, or

(b) a certificate under Part III of, or Schedule 3 to, this Act, desires to question the validity thereof on the ground that any relevant requirement has not been complied with in relation to the order or certificate he may make an application to the High Court.

(3) In subsection (2) above “relevant requirement” means—

- (a) any requirement of this Act, or of any regulation under section 7(2) above, or
- (b) any requirement of the Tribunals and Inquiries Act 1971 c. 62. 1971 or of any rules made, or having effect as if made, under that Act.

(4) An application to the High Court under this section shall be made within six weeks—

- (a) in the case of a compulsory purchase order to which the Statutory Orders (Special Procedure) Act 1945 applies 1945 (9 & 10 (and which is not excluded by section 27 below), from Geo. 6) c. 18. the date on which the order becomes operative under that Act,
- (b) in the case of a compulsory purchase order to which the said Act of 1945 does not apply, from the date on which notice of the confirmation or making of the order is first published in accordance with this Act,
- (c) in the case of a certificate, the date on which notice of the giving of the certificate is first published in accordance with this Act.

24.—(1) On an application under section 23 above the court Powers of may by interim order suspend the operation of the compulsory the court. purchase order or any provision contained therein, or of the certificate, either generally or in so far as it affects any property of the applicant, until the final determination of the proceedings.

(2) If on the application the court is satisfied that—

- (a) the authorisation granted by the compulsory purchase order is not empowered to be granted under this Act or any such enactment as is mentioned in section 1(1) of this Act, or
- (b) the interests of the applicant have been substantially prejudiced by any relevant requirement (as defined in section 23(3) above) not having been complied with,

the court may quash the compulsory purchase order or any provision contained therein, or the certificate, either generally or in so far as it affects any property of the applicant.

25. Subject to the preceding provisions of this Part of this Restriction on Act, a compulsory purchase order, or a certificate under Part other court III of, or Schedule 3 to, this Act, shall not, either before or after proceedings. it has been confirmed, made or given, be questioned in any legal proceedings whatsoever.

PART IV

Date of
operation.
1945 (9 & 10
Geo. 6) c. 18.

26.—(1) Subject to section 24 above, a compulsory purchase order, other than one to which the Statutory Orders (Special Procedure) Act 1945 applies, shall become operative on the date on which notice of the confirmation or making of the order is first published in accordance with this Act.

(2) Subject to section 24 above, a certificate under Part III of, or Schedule 3 to, this Act shall become operative on the date on which notice of the giving of the certificate is first published in accordance with this Act.

Exclusion of
orders
confirmed by
Act of
Parliament.

27. This Part of this Act shall not apply to an order which is confirmed by Act of Parliament under section 6 of the Statutory Orders (Special Procedure) Act 1945.

PART V**PROCEDURE IN SPECIAL CASES***Compulsory acquisition of rights over land*

Acquisition of
rights over
land by the
creation of
new rights.
1972 c. 60.
1976 c. 57.

28. Schedule 3 to this Act applies to the compulsory acquisition under this Act of rights over land by the creation of new rights by virtue of—

1976 c. 75.

(a) paragraphs 1 and 2 of Schedule 2 to the Gas Act 1972,

1980 c. 65.

(b) section 13(1) of the Local Government (Miscellaneous Provisions) Act 1976,

1980 c. 66.

(c) section 6(5) of the Development of Rural Wales Act 1976,

(d) section 142(4) of the Local Government, Planning and Land Act 1980,

(e) section 250 of the Highways Act 1980.

Compulsory
rights orders
under
Opencast Coal
Act 1958.
1958 c. 69.

29.—(1) This Act in its application to compulsory rights orders by section 4 of the Opencast Coal Act 1958 has effect subject to this section.

(2) Parts II, III and IV of this Act shall apply as if in those provisions—

(a) any reference to a compulsory purchase order were a reference to a compulsory rights order,

(b) any reference to the acquiring authority were a reference to the National Coal Board, and any reference to the confirming authority were a reference to the Secretary of State, and

- (c) any reference to authorising the compulsory purchase of land were a reference to operating so as to confer on the National Coal Board temporary rights of occupation and use of land.

(3) Any modifications of particular provisions of this Act which are specified in the following provisions of this section shall have effect, in relation to those provisions, in addition to the general modifications mentioned above.

(4) Part II of this Act shall apply as if for section 12 there was substituted—

“ 12. The acquiring authority shall—

- (a) serve on all persons who at the time when notice of the order is first published under section 11 above are known to the acquiring authority to be persons directly concerned a notice in the prescribed form—

(i) stating the effect of the order and that it is about to be submitted for confirmation, and

(ii) specifying the time (not being less than 21 days from service of the notice) within which, and the manner in which, objections thereto can be made, and

- (b) affix conspicuously to some conspicuous object or objects on the land comprised in the order a notice or notices containing the particulars specified in paragraph (a)(i) and (ii) above.”

(5) Section 13 of this Act shall apply as if for any reference to any owner, lessee or occupier there were substituted a reference to any person who, in relation to the order, is a person directly concerned.

(6) Except where the Secretary of State is proceeding concurrently with respect to an application for an authorisation under section 1 of the Opencast Coal Act 1958 and a compulsory rights order, the Secretary of State may disregard an objection to such an order if he is satisfied that it relates to the question whether an authorisation under the said section 1 should have been, or should be, granted to work the coal in question by opencast operations and either—

(a) it relates exclusively to that question, or

(b) in so far as it relates to other matters, they consist entirely of matters which can be dealt with in the assessment of compensation.

PART V

This subsection is without prejudice to the operation of section 13 of this Act.

(7) In section 19 of this Act—

- (a) any reference to giving other land in exchange shall be construed as a reference to making other land available during the period for which the compulsory rights order is to have effect,
- (b) the provisions of the said section 19 as to the vesting of land, and as to its being made subject to the like rights, trusts and incidents as the land purchased, shall apply with the necessary modifications, and
- (c) subsection (3)(b) shall not apply.

(8) Section 23 of this Act shall apply as if—

1958 c. 69.

- (a) in subsection (1) for the first reference to this Act there were substituted a reference to the Opencast Coal Act 1958,
- (b) in subsection (3)(a) the reference to this Act included a reference to that Act.

(9) The date on which the compulsory rights order becomes operative shall be that mentioned in section 26(1) of this Act or such later date (not being more than one year after confirmation of the order) as may be determined by the Secretary of State and specified in the order as confirmed.

(10) In the application of this Act to compulsory rights orders “prescribed” means prescribed by regulations under the Opencast Coal Act 1958.

(11) In this section “persons directly concerned” has the same meaning as in the Opencast Coal Act 1958.

Acquisition of rights in connection with underground storage of gas.

1965 c. 36.

1965 c. 56.

30.—(1) Subject to this section, in relation to the compulsory purchase—

- (a) of a right to store gas in an underground gas storage under section 12(1) of the Gas Act 1965, or
- (b) of any right under subsections (2) or (3) of section 13 of that Act,

this Act, the enactments incorporated therewith and the Compulsory Purchase Act 1965 shall have effect as if—

- (i) references (whatever the terms used) to the land comprised in the compulsory purchase order were construed, where the context so requires, as references to the stratum of land constituting the underground gas storage or, as the case may be, the land comprising the well, borehole or shaft, and

- (ii) references to the obtaining or taking possession of the land so comprised were construed as references to the exercise of the right.

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(2) In relation to the compulsory purchase of a right to store gas in an underground gas storage under section 12(1) of the Gas Act 1965 this Act shall have effect—

1965 c. 36.

- (a) as if in sections 16 to 18 of this Act references to the land comprised in the compulsory purchase order included references to any land held with the stratum of land constituting the underground gas storage,

- (b) as if sections 19 and 20 of this Act were omitted.

(3) Section 28 above and Schedule 3 to this Act shall not apply to a compulsory purchase to which this section applies.

Statutory undertakers' land

31.—(1) This section applies to a compulsory purchase order under—

Acquisition under certain Acts of statutory undertakers' land without a certificate.
1971 c. 78.
1980 c. 65.

- (a) the Town and Country Planning Act 1971,

- (b) section 104 of the Local Government, Planning and Land Act 1980 (acquisition by Land Authority for Wales), or

- (c) section 142 or 143 of the said Act of 1980 (acquisition by urban development corporation),

being a compulsory purchase order authorising the acquisition of land which has been acquired by statutory undertakers for the purposes of their undertaking.

(2) Notwithstanding the provisions of section 16 of, or paragraph 3 of Schedule 3 to, this Act a compulsory purchase order to which this section applies may be confirmed or made without the appropriate Minister's certificate mentioned in those provisions.

(3) Except where the appropriate Minister's certificate is given, a compulsory purchase order to which this section applies shall be of no effect unless it is confirmed or made by the appropriate Minister jointly with the Minister or Ministers who would apart from this subsection have power to make or confirm it.

(4) Where in accordance with this section a compulsory acquisition is effected under a compulsory purchase order confirmed or made without the appropriate Minister's certificate sections 238 to 240 of the Town and Country Planning Act 1971 (measure of compensation) shall apply in accordance with section 238(1)(c) of that Act.

PART VI

FOOTPATHS AND BRIDLEWAYS

Power to
extinguish
certain public
rights of way.

32.—(1) This section applies where land is acquired, or proposed to be acquired—

(a) in pursuance of a compulsory purchase order, or
(b) by agreement for a purpose, and by an authority, such that the compulsory acquisition of the land could be authorised by a compulsory purchase order,
and there subsists over any part of the land a public right of way, not being a right enjoyable by vehicular traffic.

1980 c. 66.

(2) If the acquiring authority is satisfied that a suitable alternative right of way has been or will be provided, or that the provision thereof is not required, the acquiring authority may by order extinguish the right of way; and Schedule 6 to the Highways Act 1980 shall have effect as to the making, confirmation, validity and date of operation of any such order.

(3) If the acquiring authority is not the Secretary of State—

(a) the order under subsection (2) above shall not take effect unless confirmed by the Secretary of State, or unless confirmed, as an unopposed order, by the acquiring authority under paragraph 2(1)(b) of Schedule 6 to the Highways Act 1980 as applied by this section, and

(b) the Secretary of State shall not confirm the order unless satisfied that this section applies, and that a suitable alternative right of way has been or will be provided, or that the provision thereof is not required.

(4) The time specified in the order under subsection (2) above as the time from which the right of way is extinguished shall not be earlier than—

(a) confirmation of the order, or if the Secretary of State is the acquiring authority, the making of the order;

1965 c. 56.

(b) if in the exercise of the power conferred by section 11(1) of the Compulsory Purchase Act 1965, or by agreement, the acquiring authority takes possession of the land, the date on which the authority takes possession of the land;

(c) if the acquiring authority does not take possession of the land in exercise of any such power, the date on which the acquisition of the land is completed.

(5) Where a right of way is extinguished under this section at a date before the acquisition of the land is completed, then if at any time thereafter it appears to the acquiring authority that the proposal to acquire the land has been abandoned, the acquiring authority shall by order direct that the right shall revive, without prejudice, however, to the making of a new order extinguishing the right.

PART VI

(6) No order shall be made under subsection (2) above as respects a right of way over land on, over or under which there is any apparatus belonging to statutory undertakers unless the undertakers consent to the making of the order, and—

(a) the consent may be given subject to the condition that there are included in the order such provisions for the protection of the undertakers as they may reasonably require, and

(b) the consent shall not be unreasonably refused.

Any question arising under this subsection whether any requirement or refusal is reasonable shall be determined by the appropriate Minister.

(7) This section shall not apply where section 214 of the Town and Country Planning Act 1971 (extinction of public rights of way over land held for planning purposes) applies.

(8) This section applies subject to any provision to the contrary in any other Act and subject in particular to the exclusion of this Part of this Act by—

section 23(3) of the Civil Aviation Act 1949, 1949 c. 67.

section 14(2) of the Civil Aviation Act 1971, 1971 c. 75.

section 17(1) of the Airports Authority Act 1975. 1975 c. 78.

(9) Except as provided in this section nothing in this Act shall be taken to authorise the extinction of any public right of way.

33.—(1) In section 32 above “compulsory purchase order” includes—

(a) a compulsory purchase order under the Acquisition of Land (Authorisation Procedure) Act 1946, and

(b) an authorisation under section 2 of that Act (which was repealed by the Statute Law Revision Act 1953. Eliz. 2) c. 5.

(2) Section 32 above shall apply in relation to land acquired before the commencement of the said Act of 1946 by a local authority, being—

(a) land acquired compulsorily under any public general Act in force immediately before the commencement of the said Act of 1946 other than—

(i) the Light Railways Acts 1896 and 1912,

(ii) Part III of the Housing Act 1936, 1936 c. 51.

(iii) the Town and Country Planning Act 1944, or 1944 c. 47.

(b) land acquired by agreement for a purpose such that the land could have been so acquired compulsorily.

PART VII**SUPPLEMENTAL**

Consequential
amendments,
transitionals
and repeals.

34.—(1) The enactments specified in Schedule 4 to this Act shall have effect subject to the amendments specified in that Schedule, being amendments consequential upon the provisions of this Act.

(2) The transitional provisions in Schedule 5 to this Act shall have effect.

(3) The enactments and instruments specified in Schedule 6 to this Act (of which those in Part II are spent) shall be repealed to the extent specified in the third column of that Schedule.

Short title,
commence-
ment and
extent.

35.—(1) This Act may be cited as the Acquisition of Land Act 1981.

(2) This Act shall come into force at the expiration of a period of three months beginning with the date on which it is passed.

(3) This Act, except so far as Schedule 4 amends any enactment which extends to Scotland or Northern Ireland, extends to England and Wales only.

SCHEDULES

SCHEDULE 1

Section 2(3).

PURCHASES BY MINISTERS

1.—(1) This Schedule has effect where a Minister is the acquiring authority.

(2) The compulsory purchase order shall be prepared in draft and shall describe by reference to a map the land to which it applies.

(3) Subject as aforesaid the form of the order shall be such as the Minister may determine.

(4) As soon as may be after the draft of the order has been prepared, and before making the order, the Minister shall comply with paragraphs 2 and 3 below.

(5) The provisions of the said paragraphs 2 and 3 as to the notice thereby required shall apply subject to such modifications of the form of the notice as appear to the Minister to be requisite.

Notices in newspapers

2.—(1) The Minister shall in two successive weeks publish a notice in the prescribed form in one or more local newspapers circulating in the locality in which the land comprised in the draft order is situated.

(2) The notice shall—

- (a) state that the order has been prepared in draft and is about to be made,
- (b) describe the land and state the purpose for which the land is required,
- (c) name a place within the locality where a copy of the draft order and of the map referred to therein may be inspected, and
- (d) specify the time (not being less than twenty-one days from the first publication of the notice) within which, and the manner in which, objections to the draft order can be made.

Notices to owners, lessees and occupiers

3.—(1) The Minister shall serve on every owner, lessee and occupier (except tenants for a month or any period less than a month) of any land comprised in the order a notice in the prescribed form—

- (a) stating the effect of the draft order,
- (b) stating that it is about to be made, and
- (c) specifying the time (not being less than twenty-one days from service of the notice) within which, and the manner in which, objections to the draft order can be made.

(2) For the purposes of this paragraph an occupier being a statutory tenant within the meaning of the Rent Act 1977 or the Rent 1977 c. 42.

SCH. 1
1976 c. 80.

(Agriculture) Act 1976 shall be deemed to be a tenant for a period less than a month.

(3) Where under this paragraph any notice is required to be served on an owner of land, and the land is ecclesiastical property, a like notice shall be served on the Church Commissioners.

In this sub-paragraph "ecclesiastical property" means land belonging to any ecclesiastical benefice, or being or forming part of a church subject to the jurisdiction of the bishop of any diocese or the site of such a church, or being or forming part of a burial ground subject to such jurisdiction.

Making of order

4.—(1) If no objection is duly made by any such owner, lessee or occupier as is mentioned in paragraph 3 above, or if all objections so made are withdrawn, the Minister, upon being satisfied that the proper notices have been published and served, may, if he thinks fit, make the order with or without modifications.

(2) If any objection made as aforesaid is not withdrawn, then, before the Minister makes the order—

(a) in the case of an order proposed to be made in the exercise of highway land acquisition powers, the Minister and the planning Minister acting jointly,

(b) in any other case, the Minister,

shall either cause a public local inquiry to be held or afford to any person by whom any objection has been duly made as aforesaid and not withdrawn an opportunity of appearing before and being heard by a person appointed by them or him for the purpose.

(3) After the objection and the report of the person who held the inquiry or the person appointed as aforesaid have been considered—

(a) in the case of an order proposed to be made in the exercise of highway land acquisition powers, by the Minister and the planning Minister acting jointly,

(b) in any other case, by the Minister,
the Minister may make the order either with or without modifications.

(4) If any person by whom an objection has been made avails himself of the opportunity of being heard, the Minister and the planning Minister acting jointly or, as the case may be, the Minister shall afford to any persons to whom it appears to them or him expedient to afford it an opportunity of being heard on the same occasion.

(5) Notwithstanding anything in subparagraphs (2) and (4) above the Minister and the planning Minister acting jointly or, as the case may be, the Minister may require any person who has made an objection to state in writing the grounds thereof, and may, if satisfied that the objection relates exclusively to matters which can be dealt with by the tribunal by whom the compensation is assessed, disregard the objection for the purposes of this paragraph.

(6) In this paragraph "highway land acquisition powers" has the meaning given by section 250(1) of the Highways Act 1980 and "the planning Minister" means the Secretary of State for the time being having general responsibility in planning matters in relation to England or Wales, as the case may be. SCH. 1
1980 c. 66.

Land not included in draft order

5. The order, as made by the Minister, shall not, unless all persons interested consent, authorise the Minister to purchase compulsorily any land which the draft order would not have authorised the Minister to purchase compulsorily if it had been made without modification.

Notices after making of order

6. As soon as may be after the order has been made the Minister shall publish in one or more local newspapers circulating in the locality in which the land comprised in the order is situated a notice in the prescribed form—

- (a) describing the land,
- (b) stating that the order has been made, and
- (c) naming a place where a copy of the order as made and of the map referred to therein may be inspected at all reasonable hours,

and shall serve a like notice, and a copy of the order as made, on any persons on whom notices with respect to the land were required to be served under paragraph 3 above.

SCHEDULE 2

Section 3.

MINERALS

PART I

1.—(1) A compulsory purchase order may, as respects all or any of the land to which the order relates, provide for the incorporation with the compulsory purchase order of—

- (a) Part II of this Schedule (which re-enacts section 77 of the Railways Clauses Consolidation Act 1845), or
- (b) Parts II and III of this Schedule (which together re-enact sections 77 to 85 of that Act).

(2) In this Schedule, unless the context otherwise requires—

"mines" means mines of coal, ironstone, slate and other minerals,

"owner", in relation to mines or minerals, includes a lessee or occupier.

(3) In this Schedule "underlying", in relation to mines or minerals, means mines or minerals lying under, or within the prescribed distance from, the undertaking, and in this sub-paragraph "prescribed distance" means the distance prescribed by the compulsory purchase order, or if no distance is so prescribed, 40 yards.

SCH. 2

(4) In this Schedule "the undertaking" means the undertaking which the acquiring authority is authorised to carry out by the enactment under which the purchase is authorised, but the compulsory purchase order may include such modifications of references in this Schedule to the undertaking as may be specified in the order.

1938 c. 52.

(5) This Schedule has effect subject to section 17(1) of the Coal Act 1938 (coal not to be alienated under enactments authorising compulsory purchase of land).

PART II

2.—(1) The acquiring authority shall not be entitled to any mines under the land comprised in the compulsory purchase order unless they have been expressly purchased, and all mines under the land shall be deemed to be excepted out of the conveyance of that land unless expressly named and conveyed.

(2) Sub-paragraph (1) above shall not apply to minerals necessarily extracted or used in the construction of the undertaking.

PART III

3.—(1) If the owner of any underlying mines or minerals desires to work them, he shall give the acquiring authority notice in writing of his intention to do so 30 days before the commencement of working.

(2) On receipt of the notice the acquiring authority may cause the mines to be inspected by a person appointed by them for the purpose.

(3) Subject to paragraph 4(1) below, if the acquiring authority consider that the working of the underlying mines or minerals is likely to damage the undertaking, and is willing to compensate the owner for all or any part of the mines, the owner shall not work or get them.

(4) If the acquiring authority and the owner do not agree on the amount of compensation the question shall be referred to and determined by the Lands Tribunal.

4.—(1) If before the expiration of 30 days from the receipt of notice under paragraph 3(1) above the acquiring authority do not state their willingness to treat with the owner for the payment of compensation the owner may work any of the underlying mines for which the acquiring authority has not agreed to pay compensation by proper methods and in the usual manner of working such mines in the district in question.

(2) If any damage or obstruction to the undertaking is caused by improper working of the underlying mines—

(a) the owner of the mines shall forthwith repair or remove the damage or obstruction at his own expense,

(b) the acquiring authority may, without waiting for the owner to perform his duty, or in case of his default, repair or remove the damage or obstruction and recover their expenses from the owner in proceedings in the High Court.

Severed mines

SCH. 2

5.—(1) If underlying mines in which any protected minerals are situated extend on both sides of the undertaking, the owner of the mines may cut and make any communication works through the protected minerals required for the ventilation, drainage and working of the mines.

(2) The communication works shall not exceed the dimensions or sections prescribed by the compulsory purchase order, and where dimensions are not so prescribed, they shall not be more than eight feet high and eight feet wide.

(3) The communication works shall not be cut or made on any part of the undertaking, or so as to injure it or impede its use.

(4) In this paragraph—

- (a) “protected minerals” means mines, measures or strata the working of which is prevented under paragraph 3(3) above,
- (b) “communication works” means airways, headings, gateways or water levels.

6.—(1) If underlying mines extend on both sides of the undertaking, the acquiring authority shall from time to time pay to the owner of the mines (in addition to any compensation under paragraph 3 above) any expenses and losses incurred by him in consequence of—

- (a) the severance by the undertaking of the land lying over the mines,
 - (b) the interruption of continuous working of the mines in consequence of paragraph 3(3) above, and
 - (c) the mines being worked in such manner and subject to such restrictions as not to prejudice or injure the undertaking,
- and for any minerals not purchased by the acquiring authority which cannot be obtained by reason of the making and maintenance of the undertaking.

(2) Any dispute as to the amount payable under this paragraph shall be determined by arbitration.

7.—(1) Where works carried out under paragraph 5 above cause loss or damage to the owner or occupier of land lying over the mines the acquiring authority shall pay full compensation to him for the loss or damage.

(2) This paragraph shall not apply where the person sustaining the loss or damage is the owner of the mines.

Powers of entry

8.—(1) For the purpose of ascertaining whether underlying mines have been worked so as to damage the undertaking the acquiring authority may, after giving 24 hours notice in writing—

- (a) enter on any land in which the mines are, or are thought to be, being worked, and which is in or near to the land where the undertaking is situated, and
- (b) enter the mines and any works connected with the mines.

SCH. 2

(2) For the said purpose the acquiring authority may make use of any apparatus or machinery belonging to the owner of the mines, and may use all necessary means for discovering the distance from the undertaking to the parts of the mines which are, or are about to be, worked.

(3) If the owner of the mines refuses to allow a person appointed by the acquiring authority for the purpose to enter the mines or works under this paragraph he shall be liable on summary conviction to a sum not exceeding £50.

Remedial works

9.—(1) If it appears that mines have been worked contrary to the provisions of this Schedule, the acquiring authority may give notice to the owner of the mines to construct such works and adopt such means as may be necessary or proper for making safe the undertaking, and preventing injury to it.

(2) If the owner of the mines does not comply with the notice, the acquiring authority may themselves construct the works, and may recover their expenses from the owner by proceedings in the High Court.

Section 28.

SCHEDULE 3

ACQUISITION OF RIGHTS OVER LAND BY THE CREATION OF NEW RIGHTS

PART I

1. In this Schedule "right" means a right to which section 28(1) of this Act applies, or any right to which this Schedule is applied by any Act passed after this Act.

General modifications

2.—(1) This Act shall have effect with the modifications necessary to make it apply to the compulsory acquisition of a right as it applies to the compulsory acquisition of land, so that, in appropriate contexts, references in this Act to land are read as referring, or as including references, to the right acquired or to be acquired, or to land over which the right is, or is to be, exercisable, according to the requirements of the particular context.

(2) Without prejudice to the generality of sub-paragraph (1) above, Part II of this Schedule shall apply to the compulsory acquisition of a right in substitution for Part III of this Act.

PART II

ACQUISITION OF NEW RIGHTS OVER SPECIAL KINDS OF LAND

Statutory undertakers land

3.—(1) This paragraph applies where the land over which a right is to be acquired by virtue of a compulsory purchase order includes land which has been acquired by statutory undertakers for the purposes of their undertaking and on a representation made to the

appropriate Minister before the expiration of the time within which objections to the order can be made he is satisfied—

- (a) that any of the said land is used for the purposes of the carrying on of their undertaking, or
- (b) that an interest in any of the said land is held for those purposes.

(2) The compulsory purchase order shall not be confirmed or made so as to authorise the compulsory purchase of a right over any land as to which the appropriate Minister is satisfied as aforesaid except land as to which he is satisfied that its nature and situation are such—

- (a) that the right can be purchased without serious detriment to the carrying on of the undertaking, or
- (b) that any detriment to the carrying on of the undertaking, in consequence of the acquisition of the right, can be made good by the undertakers by the use of other land belonging to or available for acquisition by them,

and certifies accordingly.

Orders subject to special parliamentary procedure

Local authority and statutory undertakers' land

4.—(1) This paragraph applies to land which—

- (a) is the property of a local authority, or
- (b) has been acquired by statutory undertakers, who are not a local authority, for the purposes of their undertaking.

(2) Subject to sub-paragraph (3) below, a compulsory purchase order shall, in so far as it authorises the compulsory purchase of rights over land to which this paragraph applies, be subject to special parliamentary procedure in any case where an objection to the order has been made by the local authority, or as the case may be the statutory undertakers, and has not been withdrawn.

(3) Sub-paragraph (2) above shall not apply to the compulsory acquisition of an interest in land where the person acquiring the interest is a local authority (as defined in sub-paragraph (4) below), the Land Authority for Wales, the Peak Park Joint or Lake District Special Planning Board, any statutory undertakers or a Minister.

(4) In sub-paragraph (3) above—

“local authority” means—

(a) in relation to England, the council of a county or district, the council of a London borough, the Common Council of the City of London and the Greater London Council,

(b) in relation to Wales, the council of a county or district,

SCH. 3 and this definition applies to the Isles of Scilly as if the Council of those Isles were the council of a county ;

“statutory undertakers” has the same meaning as in section 17(3) of this Act.

National Trust land

5.—(1) This paragraph applies to land belonging to the National Trust which is held by the Trust inalienably.

(2) A compulsory purchase order shall, in so far as it authorises the compulsory purchase of rights over land to which this paragraph applies, be subject to special parliamentary procedure in any case where an objection to the order has been duly made by the National Trust and has not been withdrawn.

(3) In this paragraph “held inalienably”, in relation to land belonging to the National Trust, means that the land is inalienable under section 21 of the National Trust Act 1907 or section 8 of the National Trust Act 1939.

1907 c. cxxxvi.
1939 c. lxxxvi.

Commons, open spaces etc.

6.—(1) In so far as a compulsory purchase order authorises the acquisition of a right over land forming part of a common, open space or fuel or field garden allotment, it shall be subject to special parliamentary procedure unless the Secretary of State is satisfied—

- (a) that the land, when burdened with that right, will be no less advantageous to those persons in whom it is vested and other persons, if any, entitled to rights of common or other rights, and to the public, than it was before, or
- (b) that there has been or will be given in exchange for the right additional land which will as respects the persons in whom there is vested the land over which the right is to be acquired, the persons, if any, entitled to rights of common or other rights over that land, and the public, be adequate to compensate them for the disadvantages which result from the acquisition of the right, and that the additional land has been or will be vested in the persons in whom there is vested the land over which the right is to be acquired, and subject to the like rights, trusts and incidents as attach to that land apart from the compulsory purchase order, or
- (c) that the land affected by the right to be acquired does not exceed 250 square yards in extent, and that the giving of other land in exchange for the right is unnecessary, whether in the interests of the persons, if any, entitled to rights of common or other rights or in the interests of the public,

and certifies accordingly.

1980 c. 66.

(2) In the case of a compulsory purchase order under the Highways Act 1980 sub-paragraph (1)(c) above shall have effect as if after the words “extent” there were inserted the words “or the right is

required in connection with the widening or drainage of an existing highway or in connection partly with the widening and partly with the drainage of such a highway”.

(3) Where it is proposed to give a certificate under this paragraph, the Secretary of State shall give public notice of his intention so to do, and—

(a) after affording opportunity to all persons interested to make representations and objections in relation thereto, and

(b) after causing a public local inquiry to be held in any case where it appears to him to be expedient so to do, having regard to any representations or objections made,

the Secretary of State may, after considering any representations and objections made and, if an inquiry has been held, the report of the person who held the inquiry, give the certificate.

(4) A compulsory purchase order may provide for vesting land given in exchange as mentioned in sub-paragraph (1) above in the persons, and subject to the rights, trusts and incidents, therein mentioned, and for discharging the land over which any right is to be acquired from all rights, trusts and incidents to which it has previously been subject so far as their continuance would be inconsistent with the exercise of that right.

(5) In this paragraph—

“common” includes any land subject to be enclosed under the Inclosure Acts 1845 to 1882, and any town or village green,

“fuel or field garden allotment” means any allotment set out as a fuel allotment, or a field garden allotment, under an Inclosure Act,

“open space” means any land laid out as a public garden, or used for the purpose of public recreation, or land being a disused burial ground.

Ancient monuments

7.—(1) This paragraph applies, subject to sub-paragraph (2) below, to land being, or being the site of—

(a) a monument with respect to which an interim preservation notice is in force, or

(b) subject to sub-paragraph (4) below, any other ancient monument as defined in the Ancient Monuments Acts 1913 and 1931.

(2) Sub-paragraph (1) above shall not include a listed building, or any land or object comprised within the curtilage of a listed building, unless the building or object—

(a) is specified in the Schedule to the Ancient Monuments Protection Act 1882, or

(b) is for the time being specified in a list published under section 12 of the Ancient Monuments Consolidation and 1913 c. 32. Amendment Act 1913.

SCH. 3

(3) In so far as a compulsory purchase order authorises the purchase of a right over land to which this paragraph applies, the order shall be subject to special parliamentary procedure unless the Secretary of State is the acquiring authority or certifies that the acquiring authority has entered into an undertaking with the Secretary of State to observe such conditions as to the use of the land as in his opinion are requisite having regard to the nature thereof.

1979 c. 46.

(4) Sub-paragraph (1)(b) above is prospectively repealed by the Ancient Monuments and Archaeological Areas Act 1979 as amended by paragraph 29 of Schedule 4 to this Act, that is to say repealed by a provision which may be brought into force under section 65(2) of that Act.

(5) In this paragraph—

1953 c. 49.

“interim preservation notice” means a notice served under section 10(1) of the Historic Buildings and Ancient Monuments Act 1953,

1971 c. 78.

“listed building” has the meaning given by section 54 of the Town and Country Planning Act 1971.

Land within more than one provision in this Schedule

8. In the case of land falling within more than one of paragraphs 4 to 7 above, a compulsory purchase order shall be subject to special parliamentary procedure if required to be subject thereto by any of those paragraphs.

Notice of giving of certificate

9. As soon as may be after the giving of a certificate under this Schedule, the acquiring authority shall publish in one or more local newspapers circulating in the locality in which the land comprised in the order is situated a notice in the prescribed form stating that the certificate has been given.

Section 34.

SCHEDULE 4

CONSEQUENTIAL AMENDMENTS

Translation of references to the Act of 1946

1. In the enactments specified in the Table below for “Acquisition of Land (Authorisation Procedure) Act 1946” or “said Act of 1946” substitute “Acquisition of Land Act 1981”.

TABLE

In the Metropolitan Police Act 1886 (c.22)
section 4(11).

In the Small Holdings and Allotments Act 1908 (c.36)
section 25(1).

In the Electricity Supply Act 1919 (c.100)
section 11.

In the Fire Services Act 1947 (c.41)
section 3(5).

SCH. 4

In the Agriculture Act 1947 (c.48)
section 92(1)
section 93(1)(b).

In the Electricity Act 1947 (c.54)
section 9(1).

In the Public Works (Festival of Britain) Act 1949 (c.26)
section 5(7).

In the Coast Protection Act 1949 (c.74)
section 14(1) and (3)
section 27(3) and (6).

In the Mineral Workings Act 1951 (c.60)
section 17(3).

In the Prison Act 1952 (c.52)
section 36(2).

In the Town Development Act 1952 (c.54)
section 6(4).

In the Atomic Energy Authority Act 1954 (c.32)
sections 5(1) and 9(3).

In the Food and Drugs Act 1955 (4 & 5 Eliz. 2 c.16)
section 130(3).

In the Underground Works (London) Act 1956 (c.59)
section 6(6).

In the Housing Act 1957 (c.56)
paragraph 1(1) of Schedule 1
paragraph 1(1) of Schedule 7.

In the Caravan Sites and Control of Development Act 1960 (c.62)
section 24(6).

In the Transport Act 1962 (c.46)
section 15(1), (3) and (4).

In the Water Resources Act 1963 (c.38)
section 65(3) and (4)
section 68(3).

In the Agriculture Act 1967 (c.22)
section 51(7).

In the Road Traffic Regulation Act 1967 (c.76)
section 30(1).

In the Leasehold Reform Act 1967 (c.88)
paragraph 3(4) of Schedule 4.

In the Housing Act 1969 (c.33)
section 32(2).

In the Post Office Act 1969 (c.48)
section 55(1), (2) and (3).

In the Courts Act 1971 (c.23)
the definition of "local authority" in paragraph 12(1) of
Schedule 3.

SCH. 4

In the Town and Country Planning Act 1971 (c.78)

section 112(4)

section 113(2)(3)

section 114(5)

section 197(a)

section 218(2)

section 274(1)

in Schedule 24 paragraph 46.

In the Gas Act 1972 (c.60)

paragraph 3(1) of Schedule 2.

In the Local Government Act 1972 (c.70)

section 121(4)

section 125(4) and (7)

In the Slaughterhouses Act 1974 (c.3)

section 30(2).

In the Housing Act 1974 (c.44)

section 3(4)

section 43(2).

In the Welsh Development Agency Act 1975 (c.70)

section 22(5).

In the Land Drainage Act 1976 (c.70)

section 37(2) and (4).

In the Development of Rural Wales Act 1976 (c.75)

section 28(1).

In the Refuse Disposal (Amenity) Act 1978 (c.3)

section 7.

In the Ancient Monuments and Archaeological Areas Act 1979 (c.46)

section 10(2)

section 16(9).

Land Settlement Facilities Act 1919 (c. 59)

2.—(1) In section 2(1) of the Land Settlement Facilities Act 1919, as amended by Schedule 4 to the Acquisition of Land (Authorisation Procedure) Act 1946, for “paragraph (3) of the Second Schedule to the Acquisition of Land (Authorisation Procedure) Act 1946” substitute “section 11(1) of the Compulsory Purchase Act 1965”.

(2) This paragraph (like the said amendment by Schedule 4 to the said Act of 1946) shall not affect the application of the said section 2 in relation to the compulsory hiring of land or to an agreement to hire land.

Agriculture Act 1947 (c. 48)

3.—(1) The Agriculture Act 1947 shall be amended as follows.

(2) In section 86(4)(b) for the words from “paragraph 3” to “that paragraph” substitute “section 12 of the Acquisition of Land Act 1981.”

(3) In section 92(2) for “section one of the Act of 1946” substitute “Acquisition of Land Act 1981”.

(4) For paragraphs (a), (b) and (c) of section 92(2) substitute the following paragraphs—

SCH. 4

- “(a) where the certificate relates to land falling within Part III of the Acquisition of Land Act 1981 the certificate shall be embodied in an order of the Minister, and the said Part III shall apply accordingly ;
- (b) Part I of the Compulsory Purchase Act 1965 and sections 3 and 4 of, and Schedule 2 to, the said Act of 1981 shall have effect in relation to the purchase, and anything which under those provisions may be provided by a compulsory purchase order may be provided by the said certificate ;
- (c) in the application of Part IV of the said Act of 1981 to the certificate, for references to first publication of notice of the making of an order there shall be substituted references to the service of notice of the giving of the certificate, and the relevant requirements mentioned in section 23(3) of the said Act of 1981 shall include the requirements of this Act as to the proceedings to be taken before the giving of the certificate”.

Water Act 1948 (c. 22)

4.—(1) The Water Act 1948 shall be amended as follows.

(2) In paragraph 1 of the Schedule for “Part III of the Second Schedule to the Act of 1946” substitute “section 4 of the Acquisition of Land Act 1981”.

(3) In paragraph 5 of the Schedule—

- (a) for the words from the beginning to “ancient monuments)” substitute “Part III of the Acquisition of Land Act 1981”.
- (b) in proviso (b) for the words from “First Schedule to the Act of 1946” to the end of paragraph 5 substitute “Act of 1981 there were substituted a reference to section 16 of that Act”.

(4) For paragraph 7 of the Schedule substitute—

“7.—(1) Part IV of the Acquisition of Land Act 1981 (validity and date of operation of compulsory purchase orders) shall apply to the order as if it were a compulsory purchase order.

(2) Section 23 of the said Act shall have effect in relation to the order as if in subsection (3) the definition of “relevant requirement” included any requirement of this Schedule.

(3) Nothing in this paragraph shall prohibit or restrict the taking of legal proceedings for questioning the order so far as it relates to matters other than the compulsory acquisition of land.”

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Public Works (Festival of Britain) Act 1949 (c. 26)

5.—(1) Section 5 of the Public Works (Festival of Britain) Act 1949 shall be amended as follows.

(2) In subsection (8)(a) for the words from “the Second Schedule” to the end of the paragraph substitute “Part I of the Compulsory Purchase Act 1965 and sections 3 and 4 of, and Schedule 2 to, the Acquisition of Land Act 1981”.

(3) In subsection (9) for “subsection (2) of section one of the Acquisition of Land (Authorisation Procedure) Act 1946” substitute “Part III of the Acquisition of Land Act 1981”.

Civil Aviation Act 1949 (c. 67)

6.—(1) The Civil Aviation Act 1949 shall be amended as follows.

1978 c. 4.

(2) In section 19(2A) (inserted by paragraph 9(4)(b) of Schedule 1 to the Civil Aviation Act 1978) in paragraph (a) for “(Authorisation Procedure) Act 1946” substitute “Act 1981”.

(3) In section 23(3) for “(Authorisation Procedure) Act 1946” substitute “Act 1981 other than Part VI”.

(4) In section 23(4) for “(Authorisation Procedure) Act 1946” substitute “Act 1981”.

(5) In section 28(6) of the Civil Aviation Act 1949 for the words from “(Authorisation Procedure)” to the end of the subsection substitute “Act 1981 shall apply to a compulsory purchase under this subsection”.

Coast Protection Act 1949 (c. 74)

7.—(1) In section 14(2) of the Coast Protection Act 1949 for “paragraph 15 of the First Schedule to the said Act of 1946” substitute “section 23(3) of the Acquisition of Land Act 1981”.

(2) In section 14(3) of the said Act of 1949 for “paragraph 15 of the First Schedule thereto”, in the first place where those words occur, substitute “section 23(3) thereof”.

National Parks and Access to the Countryside Act 1949 (c. 97)

8. In section 103 of the National Parks and Access to the Countryside Act 1949 before subsection (2) insert—

“(1A) The Acquisition of Land Act 1981 shall apply to the acquisition of land under this Act, and in relation to the acquisition under this Act of any interest in land the Compulsory Purchase Act 1965 shall apply with any necessary modifications”.

Housing Repairs and Rents Act 1954 (c. 53)

9. For section 50 of the Housing Repairs and Rents Act 1954 substitute—

“Exclusion of statutory tenants from receipt of certain notices.

50.—(1) This section applies for the purposes of—

(a) paragraph 3(b) of Schedule 1 to the National Parks and Access to the Countryside Act 1949 (orders designating national parks and other orders), and

(b) any local enactment regulating the service of notices in respect of the proposed exercise of any powers in relation to land.

(2) For those purposes an occupier who is a statutory tenant within the meaning of the Rent Act 1977 or the Rent (Agriculture) Act 1976 shall be deemed to be a tenant for a period less than a month."

Housing Act 1957 (c. 56)

10.—(1) Schedule 1 to the Housing Act 1957 shall be amended as follows.

(2) In paragraph 2(1) for "paragraph (b) of sub-paragraph (1) of paragraph 3 of the First Schedule to the Acquisition of Land (Authorisation Procedure) Act 1946" substitute "section 12 of the Acquisition of Land Act 1981".

(3) In paragraph 2(2) for "paragraph 19 of the First Schedule to" substitute "section 6 of".

Opencast Coal Act 1958 (c. 69)

11.—(1) The Opencast Coal Act 1958 shall be amended as follows.

(2) Before subsection (5) of section 4 insert—

"(4A) Parts II, III and IV of the Acquisition of Land Act 1981 shall apply to compulsory rights orders, subject to section 29 of that Act".

(3) In section 4(7) after "Lands Clauses Acts" insert "and the Compulsory Purchase Act 1965".

(4) Before subsection (5) of section 16 insert—

"(4A) In relation to the compulsory purchase of a right by virtue of this section—

(a) the Acquisition of Land Act 1981 shall apply, and

(b) that Act and the Compulsory Purchase Act 1965 shall have effect as if references (whatever the terms used) to the land comprised in the compulsory purchase order were construed, where the context so requires, as references to the land on which the works or pipes are to be placed, and references to the obtaining or taking possession of the first mentioned land were construed as references to the exercise of the right.

(5) In Schedule 1—

(a) in paragraph 9 for "paragraphs 15 and 16 of the First Schedule to the Acquisition of Land Act" substitute "Part IV of the Acquisition of Land Act 1981 and paragraphs 15 and 16 of Schedule 1 to the Scottish Acquisition of Land Act",

(b) in paragraph 10 for "paragraph 15 of the First Schedule to the Acquisition of Land Act" substitute "section 23(4)(b) of the Acquisition of Land Act 1981 and paragraph 15 of Schedule 1 to the Scottish Acquisition of Land Act",

(c) in paragraph 11 omit the words "and to the Acquisition of Land Act", the words "and to the Scottish Acquisition of Land Act", and the words from "and paragraph 15" to the end.

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(6) In paragraph 3(2) of Schedule 9 for "First Schedule to the Acquisition of Land Act or" substitute "Acquisition of Land Act 1981 or of Schedule 1 to".

Water Resources Act 1963 (c. 38)

12.—(1) Schedule 8 to the Water Resources Act 1963 shall be amended as follows.

(2) In paragraph 11 for "Part III of Schedule 1 to the Act of 1946" substitute "Part III of the Acquisition of Land Act 1981".

(3) In paragraph 12(4)—

(a) for the words from "Part II of Schedule 2" to "Act 1845" substitute "Schedule 2 to the Acquisition of Land Act 1981".

(b) for "Schedule 1 to the Act of 1946" substitute "the said Act of 1981".

(4) In paragraph 12(5) for "Part III of Schedule 2 to the Act of 1946" substitute "section 4 of the said Act of 1981".

(5) In paragraph 16(6) for "Part III of Schedule 1 to the Act of 1946" substitute "Part III of the Acquisition of Land Act 1981".

Police Act 1964 (c. 48)

13. In section 9(2) of the Police Act 1964 for the words from "(Authorisation Procedure)" to "commencement of that Act" substitute "Act 1981 shall apply to a compulsory purchase under this section".

Compulsory Purchase Act 1965 (c. 56)

14.—(1) The Compulsory Purchase Act 1965 shall be amended as follows.

(2) For section 1(1) substitute—

"1.—(1) This Part of this Act shall apply in relation to any compulsory purchase to which Part II of the Acquisition of Land Act 1981, or Schedule 1 to that Act, applies, and in this Part of this Act—

(a) "the Acquisition of Land Act" means that Act,

(b) "compulsory purchase order" has the same meaning as in that Act.

(3) In section 11(1)—

(a) for "paragraph 3 of Schedule 1 to the Act of 1946" substitute "section 12(3) of the Acquisition of Land Act",

(b) for "section 8(1) of the Act of 1946" substitute "section 7(1) of the Acquisition of Land Act".

(4) For section 30 substitute—

"30. Section 6 of the Acquisition of Land Act shall apply to the service of notices under this Act."

(5) In section 31 for "paragraph 3 of Schedule 1 to the Act of 1946" substitute "section 12(3) of the Acquisition of Land Act."

(6) In section 32 for "Act of 1946" substitute "Acquisition of Land (Authorisation Procedure) Act 1946".

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(7) In Part II, in sections 33(1), 34(1), 37(1) and 38(1) for "Act of 1946" substitute "Acquisition of Land Act 1981".

(8) In section 36(1) for "Act of 1946", and for "Schedule 1 to the Act of 1946" substitute "Acquisition of Land Act 1981".

(9) In section 39(2) for "Act of 1946" substitute "Acquisition of Land (Authorisation Procedure) Act 1946".

Agriculture Act 1967 (c. 22)

15.—(1) The Agriculture Act of 1967 shall be amended as follows.

(2) In section 50(7) for "Part IV of Schedule 1 to the Acquisition of Land (Authorisation Procedure) Act 1946" substitute "Part IV of the Acquisition of Land Act 1981".

(3) In Schedule 5 before paragraph 7 insert—

"6A.—(1) Part IV of the Acquisition of Land Act 1981 shall with the necessary modifications (and in particular with the substitution for references to that Act of references to this Act) apply in relation to an order made under this Schedule as the said Part IV applies in relation to compulsory purchase orders.

(2) Section 6 of the Acquisition of Land Act 1981 shall apply in relation to notices required or authorised to be served by the appropriate Minister under this Schedule with the appropriate modifications, and in particular with the substitution of the appropriate Minister for the Minister mentioned in the said section 6(4).

(3) Subsections (2) to (5) of section 250 of the Local Government Act 1972 shall apply to a public local inquiry held in pursuance of this Schedule as if the Minister there mentioned were the appropriate Minister".

Leasehold Reform Act 1967 (c. 88)

16.—(1) Schedule 4 to the Leasehold Reform Act 1967 shall be amended as follows.

(2) In paragraph 4 for the words from "and the provisions" to the end of that paragraph substitute "and the Acquisition of Land Act 1981 shall apply to a compulsory purchase under this paragraph".

(3) For paragraph 5(2), and for the paragraph 6(2) inserted by the Development of Rural Wales Act 1976, substitute—

"(2) The Acquisition of Land Act 1981 shall apply to a compulsory purchase under this paragraph".

Countryside Act 1968 (c. 41)

17.—(1) In the Countryside Act 1968 paragraph 3 of Schedule 2 shall be amended as follows.

(2) In sub-paragraph (2) for "paragraph 3 of Schedule 1 to the Acquisition of Land (Authorisation Procedure) Act 1946" substitute "section 11 or 12 of the Acquisition of Land Act 1981".

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(3) In sub-paragraph (3) for "paragraph 3 in the Act of 1946" substitute "section 11 of the said Act of 1981".

(4) In sub-paragraph (4)(a) for "the said paragraph 3 in the Act of 1946" substitute "section 11 or 12 of the said Act of 1981".

(5) In sub-paragraph (6) for "Paragraph 11 of Schedule 1 to the Acquisition of Land (Authorisation Procedure) Act 1946" substitute "Section 19 of the Acquisition of Land Act 1981".

Transport Act 1968 (c. 73)

18.—(1) Section 10 of the Transport Act 1968 shall be amended as follows.

(2) In subsection (3)—

(a) for "Acquisition of Land (Authorisation Procedure) Act 1946" substitute "Acquisition of Land Act 1981".

(b) except as it applies in Scotland, for the words from "apply as if" to the end of the subsection substitute "apply to the compulsory purchase".

(3) Substitute "Acquisition of Land Act 1981"—

(a) for "said Act of 1946" in subsection (4), and

(b) for "Acquisition of Land (Authorisation Procedure) Act 1946" in subsection (9)(a).

Courts Act 1971 (c. 23)

19. In paragraph 3 of Schedule 3 to the Courts Act 1971—

(a) in sub-paragraph (2) for "paragraph 9 of Schedule 1 to the Acquisition of Land (Authorisation Procedure) Act 1946" substitute "sections 17 and 18 of the Acquisition of Land Act 1981",

(b) in sub-paragraph (3) for "Act of 1946" substitute "Act of 1981".

Civil Aviation Act 1971 (c. 75)

20. In section 14 of the Civil Aviation Act 1971—

(a) in subsection (2) for "Acquisition of Land (Authorisation Procedure) Act 1946" substitute "Acquisition of Land Act 1981 other than Part VI".

(b) in subsection (9)(a) for "Acquisition of Land (Authorisation Procedure) Act 1946 and to section 3 to that Act" substitute "Acquisition of Land Act 1981 and to Part VI of that Act".

Town and Country Planning Act 1971 (c. 78)

21.—(1) The Town and Country Planning Act 1971 shall be amended as follows.

(2) In section 114(6) for "paragraph 3(1)(b) of Schedule 1 to the said Act of 1946" substitute "section 12 of the Acquisition of Land Act 1981".

(3) In section 115(4) for "paragraph 3(1)(b) of Schedule 1 to the Acquisition of Land (Authorisation Procedure) Act 1946" substitute "section 12 of the Acquisition of Land Act 1981".

(4) In section 117(3)—

(a) for "paragraph 3(1)(b) of Schedule 1 to the Acquisition of Land (Authorisation Procedure) Act 1946" substitute "section 12 of the Acquisition of Land Act 1981",

(b) for "paragraph 7 of that Schedule" substitute "Schedule 1 to the said Act of 1981".

(5) In section 117(5) for "paragraph 3(1)(b) of Schedule 1 to the said Act of 1946" substitute "section 12 of the Acquisition of Land Act 1981".

(6) In section 121(2) for "paragraph 11 of Schedule 1 to the Acquisition of Land (Authorisation Procedure) Act 1946" substitute "section 19 of the Acquisition of Land Act 1981".

(7) In section 132—

(a) in subsection (1) for "Part I of Schedule 1 to the Acquisition of Land (Authorisation Procedure) Act 1946" substitute "Part II of the Acquisition of Land Act 1981", and for "Part II of that Schedule" substitute "Schedule 1 to that Act",

(b) in subsection (2) for "Part I of Schedule 1 to the said Act of 1946" substitute "Part II of the Acquisition of Land Act 1981",

(c) in subsection (3) for "paragraph 6 of Schedule 1 to the said Act of 1946" substitute "section 15 of the Acquisition of Land Act 1981".

(8) In section 209(5)(b) for "section 3 of the Acquisition of Land (Authorisation Procedure) Act 1946" substitute "Part VI of the Acquisition of Land Act 1981".

(9) In section 238 (6) for the words following "'the appropriate Minister's certificate'" substitute "means such a certificate as is mentioned in section 16 of, or paragraph 3 of Schedule 3 to, the Acquisition of Land Act 1981".

Local Employment Act 1972 (c. 5)

22. In section 16 of the Local Employment Act 1972—

(a) in subsection (1) for "Section 1 of the Acquisition of Land (Authorisation Procedure) Act 1946" substitute "The Acquisition of Land Act 1981",

(b) in subsection (2) for "Act of 1946" substitute "Act of 1981".

Gas Act 1972 (c. 60)

23. In Schedule 2 to the Gas Act 1972 for paragraph 4 substitute—

"4. The Acquisition of Land Act 1981 shall apply to a compulsory purchase by the Corporation of land or rights in England and Wales, subject, in the case of a compulsory acquisition of a right by the creation of a new right, to Schedule 3 to that Act".

SCH. 4*Iron and Steel Act 1975 (c. 64)*

24. In section 9 of the Iron and Steel Act 1975—

(a) in subsection (1) for “Acquisition of Land (Authorisation Procedure) Act 1946” substitute “Acquisition of Land Act”,

(b) for subsection (3) substitute—

“(3) In this section the “Acquisition of Land Act” means—

(a) in its application to England and Wales, the Acquisition of Land Act 1981,

(b) in its application to Scotland, the Acquisition of Land (Authorisation Procedure) (Scotland) Act 1947”.

Airports Authority Act 1975 (c. 78)

25. In section 17 of the Airports Authority Act 1975—

(a) in subsection (1) for “Acquisition of Land (Authorisation Procedure) Act 1946 other than section 3” substitute “Acquisition of Land Act 1981 other than Part VI”,

(b) in subsection (7)(a) for “Acquisition of Land (Authorisation Procedure) Act 1946 and to section 3 of that Act” substitute “Acquisition of Land Act 1981 and to Part VI of that Act”.

Local Government (Miscellaneous Provisions) Act 1976 (c. 57)

26. For subsection (5) of section 13 of the Local Government (Miscellaneous Provisions) Act 1976 substitute—

“(5) In this section “compulsory purchase order” has the same meaning as in the Acquisition of Land Act 1981, and Schedule 3 to that Act shall apply to the compulsory purchase of rights by virtue of subsection (1) above.”

Development of Rural Wales Act 1976 (c. 75)

27.—(1) The Development of Rural Wales Act 1976 shall be amended as follows.

(2) In section 6(2)(b) for the words from “order” to the end of the paragraph substitute “to which the Acquisition of Land Act 1981 shall apply”.

(3) At the end of section 6(5) add “and Schedule 3 to the Acquisition of Land Act 1981 shall apply where the compulsory purchase order is made under that Act”.

National Health Service Act 1977 (c. 49)

28. For section 87 (4) of the National Health Service Act 1977 substitute—

“(4) The Acquisition of Land Act 1981 shall apply to the compulsory purchase of land under this section”.

Ancient Monuments and Archaeological Areas Act 1979 (c. 46)

SCH. 4

29. In Schedule 5 to the Ancient Monuments and Archaeological Areas Act 1979 at the end of the repeals add—

"1981 c.65. The Acquisition of Land Section 20(1)(b).
Act 1981. In Schedule 3 paragraph
7(1)(b)."

Local Government, Planning and Land Act 1980 (c. 65)

30.—(1) The Local Government, Planning and Land Act 1980 shall be amended as follows.

(2) In section 104, in subsections (3) and (4)(a), for " 1946 " substitute " 1981 ".

(3) In section 109 for the definition of the " 1946 Act " substitute—
" ' the 1981 Act ' means the Acquisition of Land Act 1981 ".

(4) In section 120(1) for "Acquisition of Land Acts" substitute "Acquisition of Land (Authorisation Procedure) (Scotland) Act 1947" and for "local authority" substitute "regional, islands or district council".

(5) In section 142 after subsection (2) insert—

“(2A) The 1981 Act shall apply (subject to section 144(2) below) to the compulsory acquisition of land in pursuance of subsection (1) or (2) above”.

(6) In section 142(5) for “1946 Act” substitute “1981 Act, and Schedule 3 to that Act shall apply to the compulsory purchase of a right by virtue of subsection (4) above”.

(7) In section 143 after subsection (3) insert—

“(3A) The 1981 Act shall apply (subject to section 144(2) below) to the compulsory acquisition of land under this section”.

(8) In section 144(2) for "1946 Act" substitute "1981 Act", and for "142(3) and 143(4)" substitute "142 and 143".

(9) In section 171 for the definition of the " 1946 Act " substitute—
" ' the 1981 Act ' means the Acquisition of Land Act 1981 " .

(10) In Part I of Schedule 20—

(a) in paragraph 1 for " 1946 " substitute " 1981 ".

(b) in paragraph 2(1) for “Part I of Schedule 1” substitute “section 2(2)”.

(c) in paragraph 2(2) for "paragraph 6 of Schedule 1" substitute "section 15".

(d) in paragraph 4(a) for "paragraph 3(1)(b) of Schedule 1" substitute "section 12".

(e) in paragraph 4(c) for “paragraph 4 of that Schedule” substitute “section 13”.

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(11) In Schedule 21, in paragraph 13, for "1946" substitute "1981",

(12) In Schedule 28—

(a) in paragraph 1 for "1946" substitute "1981".

(b) at the end of paragraph 1 add "and in paragraph 2 below as it applies in England and Wales for "Part I of Schedule 1" and "paragraph 6 of Schedule 1" substitute respectively "section 2(2)" and "section 15".

Highways Act 1980 (c. 66)

31.—(1) The Highways Act 1980 shall be amended as follows.

(2) In section 238(2) for "Act of 1946" substitute "Acquisition of Land Act 1981".

(3) In section 246(4)(a) for "paragraph 3(1)(a) of Schedule 1 to the Act of 1946" substitute "section 11 of the Acquisition of Land Act 1981".

(4) In section 247 for subsections (2) to (4) substitute—

"(2) The Acquisition of Land Act 1981 shall, subject to subsection (5) below, apply to the compulsory acquisition of land under any of the foregoing provisions of this Part of this Act".

(5) In section 247(5) for the words from "section 1(2)" to "Schedule 1 to that Act" substitute "Part III of the Acquisition of Land Act 1981".

(6) After section 250(3) insert—

"(3A) Schedule 3 to the Acquisition of Land Act 1981 shall apply to the compulsory purchase of a right by virtue of this section".

(7) In section 250(5) for paragraphs (a) and (b) substitute—

"(a) Part II of Schedule 19 to this Act has effect for the adaptation of Part I of the Act of 1965 to cases of compulsory acquisition of rights".

(8) In section 254(1) (after paragraph (c)), for the words from "notwithstanding" to "prevents" substitute "nothing in Part III of, or Schedule 3 to, the Acquisition of Land Act 1981 shall prevent".

(9) In section 254(6) for "Act of 1946" substitute "Acquisition of Land Act 1981".

(10) In subsections (1), (2) and (4) of section 257 for "Schedule 1 to the Act of 1946" substitute "Acquisition of Land Act 1981".

(11) In section 258(1) for "Schedule 1 to the Act of 1946" substitute "Part II of, or Schedule 1 to, the Acquisition of Land Act 1981".

(12) In section 259(1)—

(a) for "Part I of Schedule 1 to the Act of 1946" substitute "Part II of the Acquisition of Land Act 1981",

(b) for "Part II of the Schedule" substitute "Schedule 1 to that Act",

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(c) for "said Schedule 1" substitute "Acquisition of Land Act 1981".

(13) In section 259(2) for the words from "paragraph 6" to "that Schedule" substitute "section 15 of the Acquisition of Land Act 1981 or as the case may be paragraph 6 of Schedule 1 to that Act".

(14) In section 322(5)(a) for "Schedule 1 to the Act of 1946" substitute "Part II of, or Schedule 1 to, the Acquisition of Land Act 1981".

Animal Health Act 1981 (c. 22)

32. At the end of section 55(2) of the Animal Health Act 1981 add "and the Acquisition of Land Act 1981 shall apply to a compulsory purchase under this section by such a local authority".

New Towns Act 1981 (c. 64)

33. In section 72(2) of the New Towns Act 1981 for "section 6(3) of the Acquisition of Land (Authorisation Procedure) Act 1946" substitute "section 9 of the Acquisition of Land Act 1981".

SCHEDULE 5

Section 34.

TRANSITIONAL

References to old law to include new law

1.—(1) This paragraph is without prejudice to section 17(2)(a) of the Interpretation Act 1978 as extended to the interpretation of subordinate legislation and instruments and documents by section 23(2) and (3) of that Act.

(2) Any document made, served or issued before the passing of this Act or at any time thereafter (whether before or after the commencement of this Act) and containing a reference to an enactment repealed by this Act shall, except in so far as a contrary intention appears, be construed as referring, or as the context requires, as including a reference, to the corresponding provision of this Act.

References to new law to include old law

2. Any reference, whether express or implied, in any enactment, instrument or document (including this Act and any enactment amended by Schedule 4 to this Act) to, or to things done or falling to be done under or for the purposes of, any provision of this Act shall, if and so far as the nature of the reference permits, be construed as including, in relation to the circumstances or purposes in relation to which the corresponding provision in the enactments repealed by this Act has or had effect, a reference to, or as the case may be to things done or falling to be done under or for the purpose of, that corresponding provision.

Periods of time

3. Where a period of time specified in any enactment repealed by this Act is current at the commencement of this Act, this Act has effect as if the corresponding provision of this Act had been in force when that period began to run.

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Successor authorities

4.—(1) Any reference in this Act (whether express or implied) to a thing done by a Minister, or by a local authority, under a provision of this Act includes, except where the context otherwise requires, a reference to the corresponding thing done by a predecessor authority under the corresponding enactment repealed by this Act.

(2) In this paragraph “predecessor authority” means—

- (a) where the relevant function has been transferred from one Minister to another, the Minister from whom the function was transferred,
- (b) where the relevant function has been transferred from one local authority to another, under any enactment (including in particular the London Government Act 1963, the Local Government Act 1972 and the Water Act 1973) the authority from whom the function was transferred.

1963 c. 33.
1972 c. 70.
1973 c. 37.

Construction of enactments applying the 1946 Act

5. Section 1(1)(a) of this Act includes in particular a compulsory purchase “in relation to” which this Act applies or has effect by virtue of any enactment in which this Act substitutes a reference to this Act for a reference to the Acquisition of Land (Authorisation Procedure) Act 1946.

1946 c. 49.

Local authority and statutory undertakers land excluded from compulsory purchase

6. Section 17(3) and paragraph 4(3) of Schedule 3 above—

- (a) shall not apply where the notice of the making or preparation in draft of the compulsory purchase order was first duly published before 6th April 1976,
- (b) shall have effect, in relation to the period before 13th November 1980, as if the persons there mentioned included a development corporation as defined in section 3(1) of the New Towns Act 1981 and a joint Board established (in England) under section 2 of the Community Land Act 1975.

1975 c. 77.

Extinguishment of certain public rights of way

7. The repeal by this Act of section 3 of the Acquisition of Land (Authorisation Procedure) Act 1946 shall not affect any order under that section if—

- (a) it was made before 3rd August 1968, or
- (b) a notice relating to the order was published pursuant to subsection (2) of the said section 3 before that date,

and Part VI of this Act shall not apply to the order.

SCHEDULE 6

Section 34.

REPEALS

PART I

Chapter	Short Title	Extent of Repeal
9 & 10 Geo. 6. c. 49.	Acquisition of Land (Authorisation Pro- cedure) Act 1946.	The whole Act except sections 6(1) and 10 and Schedule 4.
10 & 11 Geo. 6. c. 41.	Fire Services Act 1947.	In section 3(5) the words from "as if" to the end of the subsection. In section 8(3) the words "The Acquisition of Land (Autho- risation Procedure) Act 1946 and" and the words "in the said Act of 1946 and".
10 & 11 Geo. 6. c. 48.	Agriculture Act 1947.	In section 92(1) the words from "and that Act" to the end of the subsection.
10 & 11 Geo. 6. c. 51.	Town and Country Plan- ning Act 1947.	Section 49(8). In section 119(1) the definitions of "land" and "local autho- rity". In Schedule 8 the amendments of the Acquisition of Land (Authorisation Procedure) Act 1946.
10 & 11 Geo. 6. c. 54.	Electricity Act 1947.	In section 9, in subsection (1) the words from "as if" to the end of the subsection.
11 & 12 Geo. 6. c. 22.	Water Act 1948.	In the Schedule, in paragraph 8(1) the words from "the Act of 1946" to "and the expression".
12, 13 & 14 Geo. 6. c. 67.	Civil Aviation Act 1949.	In section 19(2A) the words from "as if" to the end of the subsection. In section 23(3) the words from "as if" to the end of the proviso.
12, 13 & 14 Geo. 6. c. 74.	Coast Protection Act 1949.	In section 14(1) the words "as if this Act had been in force immediately before the com- mencement of that Act".
12, 13 & 14 Geo. 6. c. 97.	National Parks and Access to the Countryside Act 1949.	In section 103 subsections (2) and (4) and in subsection (6) the words from "and the provisions" to the end of the subsection.
14 & 15 Geo. 6. c. 60.	Minerals Workings Act 1951.	In section 17(3) the words from "as if" to the end of the subsection.
15 & 16 Geo. 6 and 1 Eliz. 2. c. 52.	Prison Act 1952.	In section 36(2) the words from "as if" to the end of the subsection.

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Chapter	Short Title	Extent of Repeal
15 & 16 Geo. 6 and 1 Eliz. 2. c. 54. 1953 c. 49.	Town Development Act 1952. Historic Buildings and Ancient Monuments Act 1953.	In section 6(4) the words from "as if" to the end of the subsection. In section 20 paragraph (a).
2 & 3 Eliz. 2. c. 32.	Atomic Energy Act 1954.	In section 5(1) the words from "as if" to "commencement thereof".
4 & 5 Eliz. 2. c. 16.	Food and Drugs Act 1955.	In section 130(3) the words from "as if" to the end of the subsection.
4 & 5 Eliz. 2. c. 59.	Underground Works (London) Act 1956.	In section 6(6) the words from "and that Act" to the end of the subsection.
5 & 6 Eliz. 2. c. 56.	Housing Act 1957.	In Schedule 1, in paragraph 1(1), the words "as if this Act had been in force imme- diately before the commence- ment of that Act". In Schedule 7, in paragraph 1(1), the words "as if this Act had been in force imme- diately before the commence- ment of that Act".
6 & 7 Eliz. 2. c. 69.	Opencast Coal Act 1958.	Section 4(5). Section 16(5). In section 47(2) the words from "(including" to "this Act)". In section 51(1) the definition of "the Acquisition of Land Act". In Schedule 2 Part I. In Schedule 10 paragraph 7.
8 & 9 Eliz. 2. c. 62.	Caravan Sites and Con- trol of Development Act 1960.	In section 24(6) the words from "as if" to the end of the subsection.
9 & 10 Eliz. 2. c. 33.	Land Compensation Act 1961.	In Schedule 4 paragraphs 6 and 7.
10 & 11 Eliz. 2. c. 46.	Transport Act 1962.	In section 15, in subsection (1) the words from "as if" to "that Act".
1963 c. 33.	London Government Act 1963.	In Schedule 17 paragraph 8.
1963 c. 38.	Water Resources Act 1963.	In section 65(3) the words from "and accordingly" to the end of the subsection. Section 71(5).
1964 c. 48.	Police Act 1964.	In Schedule 8 paragraph 17. In section 9(3) the words "and the Acquisition of Land (Authorisation Procedure) Act 1946".

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Chapter	Short Title	Extent of Repeal
1965 c. 36.	Gas Act 1965.	In section 12(1) the words from "and Part I" to the end of the subsection. In section 13(2) the words from "and Part I" to the end of the subsection. In section 13(3) the words "and Part I of Schedule 4 to this Act shall apply in relation to the compulsory purchase". In Schedule 4 paragraphs 1 and 2.
1965 c. 56.	Compulsory Purchase Act 1965.	In section 1, in subsections (2) and (3) the words "under the Act of 1946". In Schedule 7 the amendment of the Agriculture Act 1947.
1967 c. 22.	Agriculture Act 1967.	In section 51(7) the words from "as if" to "commencement of that Act". In Schedule 5, in paragraph 7(1) the words from "Acquisition of Land" where they first occur to "case may be", paragraph 7(2) and in paragraph 7(3) the words from the beginning to "public local inquiries)".
1967 c. 76.	Road Traffic Regulation Act 1967.	In section 30(1) the words from "as if" to "commencement of that Act".
1968 c. 41.	Countryside Act 1968.	In Part I of Schedule 3 the entry relating to the Acquisition of Land (Authorisation Procedure) Act 1946 (that is, all between the entries relating to the Water Act 1945 and the Highways Act 1959).
1968 c. 72.	Town and Country Planning Act 1968.	Section 31.
1969 c. 33.	Housing Act 1969.	Section 59. In section 32(2) the words from "as if" to the end of the subsection.
1969 c. 48.	Post Office Act 1969.	In section 55(1) the words from "as if" to the end of the subsection. In Schedule 4, in paragraph 93 sub-paragraphs (1)(iv) and (2)(iv).
1971 c. 75. 1971 c. 78.	Civil Aviation Act 1971. Town and Country Planning Act 1971.	In Schedule 5 paragraph 5(b). In section 112(4) the words from "and accordingly" to the end of the subsection. In section 113(3) the words from "as it applies" to the end of the subsection.

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Chapter	Short Title	Extent of Repeal
1971 c. 78— <i>cont.</i>	Town and Country Planning Act 1971— <i>cont.</i>	In section 114(5) the words from “and accordingly” to the end of the subsection. In section 218(2) the words from “and accordingly” to the end of the subsection. Section 229. In Schedule 23 the amendment of the Town and Country Planning Act 1968.
1972 c. 60.	Gas Act 1972.	In Schedule 2, in paragraph 5 the words “The Act of 1946 and”, and paragraphs 6 to 11.
1972 c. 70.	Local Government Act 1972.	In section 121(4) the words from “as if” to the end of the subsection. In section 125(4) the words from “as if that subsection” to “commencement of that Act”.
1973 c. 26.	Land Compensation Act 1973.	Section 64.
1974 c. 3.	Slaughterhouses Act 1974.	In section 30(2) the words from “as if” to the end of the subsection.
1974 c. 44.	Housing Act 1974.	In section 3(4) the words from “as if” (where they first occur) to the end of the subsection. In section 43(2) the words from “as if” to the end of the subsection.
1975 c. 56. 1975 c. 64.	Coal Industry Act 1975. Iron and Steel Act 1975.	In Schedule 3 paragraph 10. In section 9(1) the words from “as if” to the end of the subsection.
1975 c. 70.	Welsh Development Agency Act 1975.	In section 22(5) the words from “as if” to the end of the subsection.
1975 c. 78.	Airports Authority Act 1975.	In section 17(1) the words from “as if” to the end of the subsection. In section 19(1) the entry relating to the Acquisition of Land (Authorisation Procedure) Act 1946.
1976 c. 57.	Local Government (Miscellaneous Provisions) Act 1976.	In section 13, in subsection (2) the words from the beginning to “1946 and”, subsection (3)(a) and in subsection (3)(b) the words from “(which relates” to “Act of 1946”.
1976 c. 70.	Land Drainage Act 1976.	In Schedule 1 Part I. In section 37(2) the words from “as if” to the end of the subsection.

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Chapter	Short Title	Extent of Repeal
1976 c. 75.	Development of Rural Wales Act 1976.	In section 6, in subsection (2) the words (following paragraph (b)) from "and for the purpose" to the end of the subsection, in subsection (6) the words from the beginning to "1946 and", subsection (7)(a) and in subsection (7)(b) the words from "(which relates" to "Act of 1946)". In Schedule 4 Part I.
1976 c. 80.	Rent (Agriculture) Act 1976.	In Schedule 8 paragraph 3.
1977 c. 42.	Rent Act 1977.	In Schedule 23 paragraph 11.
1978 c. 3.	Refuse Disposal (Amenity) Act 1978.	In section 7 the words from "as if" to the end of the section.
1979 c. 46.	Ancient Monuments and Archaeological Areas Act 1979.	In section 10(2) the words from "as it" to the end of the subsection. In section 16(9) the words from "as it" to the end of the subsection.
1980 c. 65.	Local Government, Planning and Land Act 1980.	In section 104(3) the words from "as if" to the end of the subsection. In section 120(1) in paragraph (a) the words from "6th April 1976" to "Scotland", and in paragraph (b) the words from "the Peak" to "Planning Board". In section 120(2) the words "the Act of 1946 or, as the case may be" and the words "the National Trust or". Section 120(3), except for the definition of "statutory undertakers", and in paragraph (b) of that definition the words "the Town and Country Planning Act 1971 or". In section 120(5) the words "in section 2 of the New Towns Act 1965 or". In section 142(3) the words "The 1946 Act and" and in paragraph (a) the words "the 1946 Act or (as the case may be)". In section 143(4) the words "The 1946 Act and" and the words "the 1946 Act or (as the case may be)".

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Chapter	Short Title	Extent of Repeal
1980 c. 65. —cont.	Local Government Planning and Land Act 1980. —cont.	In Schedule 17, in paragraph 5 the entry (in both columns) for section 41 of the 1975 Act. In Schedule 20 paragraph 3. In Schedule 21 paragraph 14. In Schedule 23 paragraph 1. In Schedule 28 paragraph 3, in paragraph 21(1) the words "The 1946 Act and", paragraph 21(2)(a) and paragraph 22.
1980 c. 66.	Highways Act 1980.	In section 250(4) the words "1946 and". In section 329(1) the definition of the "Act of 1946". Section 340(2)(c). In Schedule 19 Part I.
1981 c. 22.	Animal Health Act 1981.	In section 55(3) the words "the Acquisition of Land (Authorisation Procedure) Act 1946 and".
1981 c. 38.	British Telecommunications Act 1981.	In Schedule 3 paragraphs 10(1) (a) and 11(1)(a).

The repeals by this Act in section 13 of the Local Government (Miscellaneous Provisions) Act 1976 shall not affect section 82(1) of that Act (power to make consequential repeals or amendments).

PART II

SPENT PROVISIONS

Chapter	Short Title	Extent of Repeal
23 & 24 Geo. 5. c. 12.	Children and Young Persons Act 1933.	Section 96(5).
9 & 10 Geo. 6. c. 49.	Acquisition of Land (Authorisation Procedure) Act 1946.	In Schedule 4 the amendment of the Children and Young Persons Act 1933.
10 & 11 Geo. 6. c. 41.	Fire Services Act 1947.	In section 3(5) the proviso.
10 & 11 Geo. 6. c. 54.	Electricity Act 1947.	In subsections (1) and (2) of section 9 the words "(except section two thereof)".
11 & 12 Geo. 6. c. 29.	National Assistance Act 1948.	Section 58.

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Chapter	Short Title	Extent of Repeal
12, 13 & 14 Geo. 6. c. 26.	Public Works (Festival of Britain) Act 1949.	Section 5(7)(a).
12, 13 & 14 Geo. 6. c. 67.	Civil Aviation Act 1949.	In section 28(6) the words "except section 2 thereof".

PART III

STATUTORY INSTRUMENTS

Serial number	Short Title	Extent of Repeal
S.I. 1965/145.	Transfer of Functions (Shipping and Construction of Ships) Order 1965.	In Schedule 1 the entry relating to the Acquisition of Land (Authorisation Procedure) Act 1946.
S.I. 1965/319.	Secretary of State for Wales and Minister of Land and Natural Resources Order 1965.	In Part I of Schedule 1 the entry relating to the Acquisition of Land (Authorisation Procedure) Act 1946.
S.I. 1967/486.	Transfer of Functions (Miscellaneous) Order 1967.	In Schedule 2 the amendment of the Acquisition of Land (Authorisation Procedure) Act 1946.
S.I. 1969/388.	Transfer of Functions (Wales) Order 1969.	Article 4(1)(c).
S.I. 1970/1681.	Secretary of State for the Environment Order 1970.	In Schedule 3 paragraph 15.
S.I. 1976/1775.	Secretary of State for Transport Order 1976.	In Schedule 2 paragraph 4.